



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRWP-7181-2026

Date of Decision:17.06.2026

Sahil and Another

.....Petitioners

Vs.

State of Haryana and Others

.....Respondents

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

**Present:- Mr. Jatinder Singh Chahal, Advocate
for the petitioners.**

DEEPAK GUPTA, J. (ORAL)

By way of this writ petition filed under Article 226/227 of Constitution of India, petitioners prays for issuance of the appropriate writ to direct respondent Nos.1 to 3 to protect the life and liberty of the petitioners from the hands of respondent Nos.4 to 6.

The grievance of the petitioners is that petitioner No.2 is aged 17 years and 9 months, her date of birth is 03.09.2008. She wants to marry petitioner No.1 after attaining majority as per own choice. She is presently pursuing the course of B.A. L.L.B and left the house of her parents and came to petitioner No.1.

Notice of motion.

Mr. Anuj Garg, DAG, Haryana accepts notice on behalf of respondent Nos.1 to 3- State.



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From the contents of the petition, it appears that petitioner No.2 is a child being less than 18 years of age. Thus, she is child in need of care and protection within the meaning of Section 2(14) of the Juvenile Justice (Care and Protection) of Children Act, 2015. Accordingly, respondent Nos.2 and 3 are directed to ensure the production of petitioner No.2 before the Child Welfare Committee, Kurukshetra within a period of one week. The said Committee, as constituted under the Juvenile Justice (Care and Protection) of Children Act, 2015 shall take a decision *qua* the custody of the child as per law.

At the same time, respondent Nos.2 and 3 shall also assess the threat perception to the life and liberty of the petitioners, and till necessary order is passed by the Child Welfare Committee, necessary protection shall be provided to petitioner No.2, in case, any threat perception is found against her life and liberty.

Disposed of.

(DEEPAK GUPTA)
JUDGE

June 17, 2026
Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No